

Court No. - 1

Case :- WRIT - C No. - 2212 of 2020

Petitioner :- Virendra Kumar @ Birendra Kumar And 3 Others

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Dileep Kumar, Maiku Lal Maurya

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

As prayed, put up on 03.02.2020 as fresh.

Interim order, if any, to continue till the next date of listing.

Order Date :- 23.1.2020

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(Ajit Kumar, J.) (Ramesh Sinha, J.)

Court No. - 37

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Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Dileep Kumar, Maiku Lal Maurya

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Abhinava Upadhyaya, J.

Hon'ble Shamim Ahmed, J.

Heard learned counsel for the petitioners, learned Standing Counsel for respondent Nos.1 to 3 and Shri Mahboob Ahmad, learned counsel appearing for respondent No.4.

The petitioners' claim themselves to be consumer of electricity and claimed that they had valid connections, which are given in paragraph no.3 of the writ petition. It is submitted that the bills were furnished upon the petitioners, which is stated to be steeply inflated, and therefore, the petitioners filed objections and without considering the objections, recovery is being pressed against the petitioners. In this regard, petitioners submitted that in view of Clause 6.5 of the Electricity Supply Code, 2005, the appropriate authority to look into such matters is the Executive Engineer before whom the petitioners filed such objection, which is pending for consideration.

The writ petition is disposed of with the direction to the authority concerned to consider and decide the objection of the petitioners in accordance with law within a period of one month from today.

For a period of one month, no coercive action shall be taken against the petitioners pursuant to the demand notice dated 17.7.2019.

Order Date :- 4.2.2020

SFH

(Shamim Ahmed, J.) (Abhinava Upadhyaya, J.)